

TRAVEL UP TERMS & CONDITIONS OF BOOKING

Updated on: 14th October 2025

SECTION A - APPLICABLE TO ALL BOOKINGS

1. These terms

- What these terms cover.** These are the terms and conditions on which we sell travel arrangements and package holidays to you. The terms and conditions which apply to your booking depends on what you have booked with us, as follows:
 - If you have booked a single Travel Arrangement with us, for example a flight-only booking or a hotel-only booking we act as an agent on behalf of the third-party supplier of the flight, hotel, or other travel arrangement in question, and your contract for the Travel Arrangement you have booked will be with that Supplier/Principal. For single Travel Arrangement bookings only Section A of these terms will apply to your booking.
 - Alternatively, if you have booked a Package Holiday with us (as defined fully at clause 23), then your contract is with us and both Sections A and B of these terms will apply to your booking.
- Definitions.** In these terms, the following terms have the following meanings:
 - "Travel Arrangement(s)" means the flights, accommodation, car hire and other travel services we feature on our website;
 - "Supplier/Principal" means the third-party supplier of the Travel Arrangements including but not limited to airlines, accommodation providers and car hire companies;
 - "Package Holiday" has the meaning given to it in clause 23.2 and clause 23.3 of these terms;
 - "We", "Us", "Our", means Travel Up Limited as defined in clause 2.1;
 - "You" mean all persons named on the booking (including anyone who is added or substituted at a later date) or any of them.
- Why you should read these terms.** Please read these terms carefully before you submit your booking to us. These terms tell you who we are, how we will sell Travel Arrangements and Package Holidays to you, how you and we may change or cancel your booking, what to do if there is a problem and other important information.

2. Information about us and how to contact us

- Who we are.** We are Travel Up Limited, a company registered in England and Wales. Our company registration number is 05121675 and our registered office is at 1 Zodiac House, Calleva Park, Aldermaston, Reading, England RG7 8HN (this address is also our postal address).
- IATA Accredited Agency.** We are proud to be a recognised IATA accredited agency. IATA accreditation is a seal of approval promoting best practice that is recognised worldwide across the flight industry.
- How to contact us.** You can contact us by telephoning our customer service team at 0118 955 6400 or by writing to us at the postal address in clause 2.1 or by email to admin@travelup.com. Please note, we reserve the right to record all telephone calls to ensure that our customer service is constantly reviewed. Should you require a copy of the call recording for any reason an administration fee may be applied.
- How we may contact you.** If we have to contact you we will do so by telephone or by writing to you at the email address or postal address you provided to us in your booking.
- "Writing" includes emails.** When we use the words "writing" or "written" in these terms, this includes emails.

3. Lead Customer

- When you make a booking with us, the first named person on the booking (lead customer) agrees on behalf of all persons named on the booking that he/she:
 - has read these terms and has the authority to and does agree to be bound by them;
 - consents to our use of personal data in accordance with our [Privacy Policy](#) and is authorised on behalf of all persons named on the booking to disclose their personal details to us, including where applicable special categories of data (such as information on health conditions or disabilities and dietary requirements);
 - is over 18 years of age and where placing an order for services with age restrictions declares that he/she and all members of the party are of the appropriate age to purchase those services;
 - accepts financial responsibility for payment of the booking on behalf of all persons named on the booking.

- Your contract.** When you make a booking of a single Travel Arrangement (e.g. a flight only or hotel only booking), we will arrange for you to enter into a contract with the Supplier/Principal of your chosen Travel Arrangement. Your booking with us is subject to these terms and the specific terms and conditions of the relevant Supplier/Principal(s) you contract with. The Supplier/Principal's terms and conditions may limit and/or exclude the Supplier/Principal's liability to you. When you make a booking of a Package Holiday you will enter into a contract with us, subject to these terms, please see clause 24.

- Our agency status.** When you make a booking of a single Travel Arrangement (e.g. a flight only or hotel only booking) we act as an agent on behalf of the Supplier/Principal of your chosen Travel Arrangement. This means that your contract is with the Supplier/Principal and not with us. We are not responsible to you for the provision of the Travel Arrangements, this responsibility lies with the Supplier/Principal. However, if we sell Travel Arrangements in such a way as to create a Package Holiday, we will accept responsibility for those Travel Arrangements in accordance with Section B of these terms.

6. Your Booking

- Making a booking.** When placing your booking you must provide us with all information which we require. You must also ensure that all information that you provide is accurate.
- Booking confirmation.** Your booking is confirmed and a contract between you and the Supplier/Principal (where you have booked a single Travel Arrangement) or between you and us (where you have booked a Package Holiday) will exist when we send you confirmation on our/their behalf.
- Your responsibility to check your documents & e-tickets.** It is your responsibility to check the booking confirmation, ATOL Certificate (if applicable) and any other documents we send you carefully and to let us know immediately in the event of any error or inaccuracy, as it may not be possible to make changes later. Please ensure that the names on the booking confirmation exactly match the names as spelt in your passport (including all middle names). Airlines offer only electronic confirmation of your reservation, or 'e-ticketing', on all routes.
- If we cannot accept your booking.** If we or the relevant Supplier/Principal(s) are unable to accept your booking, we will inform you of this in writing and will not charge you. If you have already made payment, we will refund this to you in full. This might be because the Travel Arrangements are no longer available, or because we have identified an error in the price or description of the Travel Arrangements. We reserve all rights to accept or decline your booking with us.
- Your booking reference.** We will assign a unique reference number to your booking and tell you what it is when we confirm your booking. It will help us if you can tell us the booking reference whenever you contact us about your booking.
- You must reconfirm with the airline at least 72 hours before the departure time shown on your ticket to confirm that there have been no changes. This applies to both outbound and return flights. We will not be liable for any additional costs due to your failure to reconfirm flights. Reconfirming your flight at least 72 hours before departure is a minimum requirement.

7. Price and payment

- Where to find the price.** The price of the Travel Arrangements will be the price indicated on the booking pages of our website when you place your booking

or the price communicated to you over the phone, when you book by telephone. We take all reasonable care to ensure that the price of the Travel Arrangements advised to you is correct. However please see clause 7.3 for what happens if we discover an error in the price of the Travel Arrangements you have booked.

2. **Currency.** Currency rates displayed on our website are not verified or guaranteed by us as being accurate and should be used as guidelines only. Exchange rates are not updated every day and actual exchange rates may vary slightly.
3. **What happens if we got the price wrong.** It is always possible that, despite our best efforts, some of the Travel Arrangements we sell may be incorrectly priced. We will normally check prices before accepting your booking so that, where the correct price at your booking date is less than our advertised price at your booking date, we will charge the lower amount. If the correct price at your booking date is higher than the price advertised, we will contact you for your instructions before we confirm your booking. If we accept and process your booking where a pricing error is obvious and unmistakable and could reasonably have been recognised by you as a mispricing, we may cancel your booking and refund you any sums you have paid.

Some of our accommodation providers negotiate their low rates on the basis that residents of the country where the hotel stay is taking place, are not eligible to stay at that rate. In most circumstances, this does not apply to residents of EU countries staying in other EU countries. Problems seem to mainly occur, where non-EU passport holders are booked to stay in the country where the passport was issued. For example, Turkish nationals in Turkey, or Egyptian nationals in Egypt. If you think this may affect your booking, please ask our Customer Service team to confirm your booking will be accepted by the hotel, as resolution once you are abroad will be very difficult and may result in additional charges being incurred or the cancellation of the booking. Occasionally accommodation providers may ask that we contact you prior to the departure date to ask for the nationalities of the parties travelling. It is important that you contact our Customer Service team in this instance with this information in order to confirm that the rates are eligible for the parties travelling.

4. **When you must pay and how you must pay.** We accept payment by Visa, Mastercard, American Express, Delta, Maestro, Visa Electron, American Express Pay by Bank Transfer (PWBt) and Super Payments. You must ensure, when making payment to us, that the credit or debit card or bank account you are using is your own or, subject to our agreement, if it is a third party's, that you have their express authorisation to use their credit or debit card and that sufficient funds are available to cover the cost of the Travel Arrangements which you book with us.

If a corporate/business card is used to make payment, then a fee will be charged. This fee stands at 3.5% for a corporate/business AMEX card and 3% for all other corporate/business cards. It is your responsibility to correctly identify the card type at the time of purchase. If you fail to declare that a corporate/business card has been used we reserve the right to debit the card for the outstanding percentage.

When you must pay depends on when you booked, and the type of Travel Arrangement you have booked, as follows:

1. **For flight only bookings:** Where you have made a booking of a flight only arrangement, full payment will be required by the Supplier/Principal at the time of booking (unless you are advised otherwise when placing your booking);
2. **For all other bookings:**
 1. In order to make a booking, you must pay a non-refundable deposit plus any required pre-payments and insurance premiums. The deposit amount will be notified to you at the time of booking.
 2. If you have paid a deposit, the balance of the cost of your booking is payable not less than 4 weeks before your start date, unless you are informed otherwise at the time of booking. If you fail to pay the balance by the due date, we will notify the Supplier/Principal who may cancel your booking and retain your deposit or, where you have booked a Package Holiday, we will cancel your booking and retain your deposit.
 3. **Late Bookings.** It will usually be the case that, if you make a booking within 4 weeks of your start date, either we or the Supplier/Principal will require you to make payment of the full amount of your chosen Travel Arrangements, at the time of booking.
5. **Local charges not included in the price.** The price of the Travel Arrangements includes all government taxes as applicable at the time of booking that do not have to be paid locally. Those that have to be paid locally by you are extra and are your responsibility (such as international airport departure tax or local resort taxes). You will be advised of the amount of any such local charges where known by us before your booking is confirmed.
6. **Booking Fee.** Please note we apply a non-refundable booking fee for the processing of all bookings made with us which is included in the final price advertised. The value of the fee applicable to you booking will be communicated to you before you place your booking.
7. **Payment Disputes & Debt Recovery**
 1. **Chargebacks & Dispute Resolution**

If you believe a payment has been made in error or you have a concern regarding your booking, you agree to first contact our Customer Support Team to resolve the matter before initiating a chargeback or dispute with your payment provider. Failure to do so may be considered a breach of these Terms and Conditions.

If a chargeback is submitted without reasonable cause, or is found to be unsubstantiated, we reserve the right to recover the original transaction amount and may add an administration fee of £35.00 to cover the costs associated with processing the dispute.
 2. **Debt Recovery & Third-Party Collection**

You acknowledge and agree that in the event of any outstanding payments, unjustified chargebacks, or fraudulent disputes, Travel Up Limited may assign the debt to a licensed third-party debt recovery agency for collection.

The collection agency may contact you directly and take reasonable and lawful steps to recover the debt, including adding recovery costs where legally permitted.
 3. **Customer Cooperation**

You agree to cooperate in good faith with any reasonable request for information or documentation made by Travel Up Limited or its authorised agents in connection with any payment investigation, dispute, or recovery action. This includes but is not limited to: booking confirmations, proof of travel, and communication records.
 4. **Acceptance of Terms**

By proceeding with any booking and payment, you confirm your acceptance of these Terms and Conditions, including this Clause 7.7 on dispute resolution and debt recovery.
8. **Package Holidays.** If you have booked a Package Holiday, additional terms apply to your booking. Please see clause 24.
8. **Flight bookings.** The majority of flights available to book on our website are not ATOL protected – and nor do they need to be. When selling flights on our website, we act in the following capacities:
 1. **Flight-Only Ticket Fully Paid Exemption:** for the vast majority of bookings when making your booking with the Supplier/Principal, we will take full payment of the cost of the flight from you, and pass this on to the airline (being the Supplier/Principal) at the time you make your booking, and the Supplier/Principal shall issue you with a confirmed ticket for your flight, which we shall pass on to you immediately upon receipt by the Supplier/Principal. these bookings are exempt from ATOL protection, because the airline has been paid in full and a flight ticket has been issued. Your booking will not be ATOL protected and we shall clearly mark this on your confirmation invoice.

2. **ATOL agency bookings:** occasionally, we may act as an agent on behalf of another ATOL holder and your flight booking will therefore be protected under that ATOL holder's ATOL, not ours. We will make this clear on the confirmation invoice and ATOL certificate you receive for this flight booking.
3. **ATOL protected bookings.**
 1. Some of the flights and flight-inclusive holidays advertised on our website are financially protected by the ATOL scheme. But ATOL protection does not apply to all flights, holidays and Travel Arrangements listed on this website. This website will provide you with information on the protection that applies in the case of each flight, holiday and Travel Arrangement offered before you make your booking. If your confirmed booking includes an ATOL protected flight, we will issue you with an ATOL Certificate either on our behalf or on behalf of the ATOL holder, as applicable.
 2. If you do not receive an ATOL Certificate then your booking is not ATOL protected. If you do receive an ATOL Certificate but all the parts of your trip are not listed on it, those parts are not ATOL protected. Please see these booking conditions for information, or for more information about financial protection and the ATOL Certificate go to www.caa.co.uk.
 3. Any money paid to us in respect of a booking covered by an ATOL is held by us on behalf of and for the benefit of the Trustees of the Air Travel Trust at all times, but subject to our obligation to pay it to the ATOL Holder for so long as the ATOL Holder does not fail financially. If the ATOL Holder does fail financially, any money held at that time by us or subsequently accepted from the consumer by us, is and continues to be held by us on behalf of and for the benefit of the Trustees of the Air Travel Trust without any obligation to pay that money to the ATOL Holder.
 4. We, or the suppliers identified on your ATOL Certificate, will provide you with the services listed on the ATOL Certificate (or a suitable alternative). In some cases, where neither we nor the supplier are able to do so for reasons of insolvency, an alternative ATOL holder may provide you with the services you have bought (at no extra cost to you). You agree to accept that in those circumstances the alternative ATOL holder will perform those obligations and you agree to pay any money outstanding to be paid by you under your contract to that alternative ATOL holder. However, you also agree that in some cases it will not be possible to appoint an alternative ATOL holder, in which case you will be entitled to make a claim under the ATOL Scheme (or your credit card issuer where applicable).
 5. If we, or the suppliers identified on your ATOL certificate, are unable to provide the services listed (or a suitable alternative, through an alternative ATOL holder or otherwise) for reasons of insolvency, the Trustees of the Air Travel Trust may make a payment to (or confer a benefit on) you under the ATOL scheme. You agree that in return for such a payment or benefit you assign absolutely to those Trustees any claims which you have or may have arising out of or relating to the non-provision of the services, including any claim against us, the travel agent (or your credit card issuer where applicable). You also agree that any such claims may be re-assigned to another body, if that other body has paid sums you have claimed under the ATOL scheme.

9. Fly Now Pay Later

1. If you wish to spread the cost of your chosen Travel Arrangements over monthly instalments of 3 to 12 months, you can select the Fly Now Pay Later option at checkout (where available). If you select this option, we will introduce you to our partner Fly Now Pay Later who will process your application and carry out the necessary eligibility checks. If you are approved, you will enter into a contract with Fly Now Pay Later for the provision of your chosen payment plan. Any questions or queries that you may have about your chosen payment plan should be directed to Fly Now Pay Later.
2. **Legal Statement.** Fly Now Pay Later Limited acts as a credit intermediary and not a lender and is authorised and regulated by the Financial Conduct Authority under registration number 726937.
3. **Regulatory Statement.** Credit accounts are provided by Travelfund Limited who are authorised and regulated by the Financial Conduct Authority under registration number 672306. Travelfund Limited registered office: Eighth Floor, 6 New Street Square, London, EC4A 3AQ, United Kingdom. Registered in England and Wales No. 09020100. Fly Now Pay Later ® & Travelfund ® are registered trademarks of Travelfund.co.uk Limited.

10. Your rights to make changes to your confirmed booking.

1. **How to request a change.** If, after we have issued you with a booking confirmation, you wish to make an amendment to your Travel Arrangements, please contact us in writing. We will contact the Supplier/Principal (where you have booked a single Travel Arrangement) or our own supplier (where you have booked a Package Holiday) and let you know if the change is possible. Please note: amendments to single Travel Arrangement bookings can only be made in accordance with the Supplier/Principal's terms and conditions. If the amendment is possible, we will let you know about any changes to the price of the Travel Arrangements or anything else which would be necessary as a result of your requested amendment and ask you to confirm whether you wish to go ahead with the amended booking. If we or the Supplier/Principal cannot make the amendment or the consequences of making the amendment (such as an increased price) are unacceptable to you, you may want to cancel your booking (see clause 11 – if you wish to cancel your confirmed booking).
2. **Our administration fee.** Where your requested change can be met, you must pay all costs and charges incurred or imposed by our suppliers (for Package Holidays) or the Supplier/Principal (for single Travel Arrangement bookings) together with an amendment fee of £75 per change per person (unless you have purchased a service pack, in which case the amendment fee payable will be as per the terms of your chosen service pack) before the change can be made.
3. **Not all arrangements can be amended.** Please note that certain Travel Arrangements (such as flights) cannot be changed or transferred after they have been confirmed and any change could incur a cancellation charge of up to 100% of the cost of the Travel Arrangement and require you to re-book.

11. Your right to cancel your confirmed booking.

1. **Your right to cancel.** You may cancel your confirmed booking at any time prior to departure. Should you wish to do so, you must contact us in writing, using the contact details at clause 11.3. Such notification will only be effective on receipt by us. For all non-refundable airline tickets if the recoverable tax components are less than the administration charge the ticket will be deemed to be fully non-refundable. Any applicable tax refunds recovered from the supplier for non-refundable tickets will be issued in the form of a TravelUp electronic credit voucher, this will be valid for 12 months from the date of issue. Please note: cancellations of single Travel Arrangement bookings can only be accepted in accordance with the Supplier/Principal's terms and conditions and the Supplier/Principal's cancellation charges will apply together with our administration fee as per clause 11.4. Cancellations of Package Holiday bookings can only be accepted in accordance with Section B of these terms (please see clause 27).
2. **No cooling off period.** Please note that you do not have a legal right to change your mind and cancel your Travel Arrangements within 14 days and receive a refund. This right, under the Consumer Contracts Regulations 2013, does not apply to travel arrangements or package holidays.
3. **How to contact us if you wish to cancel.** To cancel your confirmed booking, please let us know by doing one of the following:
 1. **Phone or email.** Call customer services on [0118 955 6400](tel:01189556400) or email us at admin@travelup.com. Please provide your name, home address, booking reference number and, where available, your phone number and email address.
 2. **By post.** Write to us at the postal address at clause 2.1, including your booking reference number and your name and address.
4. **Our administration fee.** Where you cancel your confirmed booking, you must pay an administration fee to us of £75 per person (unless you have purchased a service pack, in which case the administration fee payable will be as per the terms of your chosen service pack). For all non-refundable airline tickets if the recoverable tax components are less than the administration charge the ticket will be deemed to be fully non-refundable. Any applicable tax refunds recovered from the supplier for non-refundable tickets will be issued in the form of a TravelUp electronic credit voucher, this will be valid for 12 months from the date of issue. Where you cancel a single Travel Arrangement booking you must pay all cancellation charges imposed by the Supplier/Principal. Where you cancel a Package Holiday booking, Section B of these terms will apply (please see clause 27).

12. Changes and Cancellations by us or the Supplier/Principal.

1. **For single Travel Arrangement bookings:**

1. Please note that since we act as a booking agent on behalf of the Supplier/Principal we have no liability to you in the event the Supplier/Principal makes a change to or cancels your confirmed booking. We will, where we become aware of such issue, inform you as soon as reasonably possible if the Supplier/Principal needs to make a significant change to your confirmed booking or to cancel your booking. We will also liaise between you and the Supplier/Principal in relation to any alternative travel arrangements offered by the Supplier/Principal, but we will have no further liability to you.
2. Where you have made a booking with us and the Supplier/Principal of your chosen Travel Arrangement(s) is required to cancel your booking for any reason (or where you have booked a Package Holiday and have the right to cancel your booking under clause 27), we will, where possible, assist you in obtaining a refund from the Supplier/Principal. Where the Supplier/Principal refunds your booking amount, we will forward this on to you – but only when we have received that refund from the Supplier/Principal. We cannot refund any amount to you if we haven't received the same from the Supplier/Principal. Any refund due to you which is received by us from the Supplier/Principal, will be forwarded on to you in accordance with this clause (b).
2. **For Package Holiday bookings.** Where you have booked a Package Holiday, additional terms and conditions apply to your booking. Please see clause 28 for further information.
3. **For all bookings.** Please note, the booking fee you pay to us when placing your booking (please see clause 7.6 for more information) is non-refundable in the event of cancellation of your chosen Travel Arrangements together with an administration fee of £50 per booking (unless you have purchased a service pack, in which case the administration fee payable will be as per the terms of your chosen service pack).
13. **Our responsibility for your booking.** For single Travel Arrangement bookings we act as a booking agent on behalf the Supplier/Principal. As agent, we accept no responsibility for the acts or omissions of the Supplier/Principal or for the Travel Arrangements provided by them. Our responsibilities are limited to making the booking in accordance with your instructions. We accept no responsibility for any information about the Travel Arrangements that we pass on to you in good faith. However, in the event that we are found liable to you on any basis whatsoever, our maximum liability to you is limited to twice the cost of your booking (or the appropriate proportion of this if not everyone on the booking is affected). We do not exclude or limit any liability for death or personal injury that arises as a result of our negligence or that of any of our employees whilst acting in the course of their employment. Please Note: where you have booked a Package Holiday we will accept responsibility for that Package Holiday as a package organiser and additional terms and conditions apply. Please see clause 29 for further information.
14. **Your responsibilities**
 1. **Travel insurance.** You must purchase adequate travel insurance for your Travel Arrangements and holiday. It is your responsibility to ensure that the insurance cover you purchase is suitable and adequate for your particular needs, ensuring it covers all the activities you plan to undertake and protects you against cancellation, medical and repatriation expenses and personal liability claims. If you wish to arrange additional activities while you are away, please check your cover before doing so. Please read your policy details carefully and take them with you on holiday. If you choose to travel without adequate insurance cover, we will not be liable for any losses suffered by you in respect of which insurance cover would otherwise have been available.
 2. **Travel advice.** For up-to-date travel advice from the UK government, visit www.gov.uk/foreign-travel-advice and <https://travellaware.campaign.gov.uk>. We recommend that you consult these websites before booking in order to make an informed decision about your chosen destination, and again before departure.
 3. **Behaviour.** You are expected to conduct yourself in an orderly and acceptable manner and not to disrupt the enjoyment of others. If in our or the Supplier/Principal's opinion or in the opinion of any other person in authority, your behaviour or that of any member of your party is causing or is likely to cause distress, danger or annoyance to any other customers or any third party, or damage to property, or to cause a delay or diversion to transportation, we or the Supplier/Principal reserve the right to terminate your booking immediately with no further liability to you. You and/or your party may also be required to pay for loss and/or damage caused by your actions and you and each member of your party will be jointly and individually liable for any damage or losses caused. Full payment for any such damage or losses must be paid directly to us or the Supplier/Principal prior to departure. If you fail to make payment, you will be responsible for meeting any claims (including legal costs) subsequently made against us because of your actions together with all costs we incur in pursuing any claim against you. We cannot be held responsible for the actions or behaviour of other guests or individuals who have no connection with your Travel Arrangements or with us.
 4. **Passports & Visas.** It is your responsibility to check and fulfil the passport, visa, health and immigration requirements applicable to your Travel Arrangements. We can only provide general information about this. You must check requirements for your own specific circumstances with the relevant Embassies and/or Consulates and your own doctor as applicable. Requirements do change, and you must check the up to date position in good time before departure. Most countries now require passports to be valid for at least 6 months after your return date. If your passport is in its final year, you should check with the Embassy of the country you are visiting. We do not accept any responsibility if you cannot travel or incur any other loss because you have not complied with any passport, visa, immigration requirements or health formalities. You agree to reimburse us in relation to any fines or other losses which we incur as a result of your failure to comply with any passport, visa, immigration requirements or health formalities.
 5. **Special requests.** It is your responsibility to notify us of any special requests at the time of booking e.g. dietary conditions, room location, a particular facility at a hotel etc. You should then confirm your requests in writing. We will pass your request on to the Supplier/Principal but we cannot guarantee that they will be fulfilled. The fact that a special request has been noted on your confirmation invoice or any other documentation or that it has been passed on to the Supplier/Principal is not confirmation that the request will be met.
15. **Fitness to Travel and Medical Conditions.**
 1. We are not a specialist disabled holiday company but we will do our utmost to cater for any special requirements you may have. If you or any member of your party has any medical problem or disability which may affect your booking, please provide us with full details before we confirm your booking so that we can try to advise you as to the suitability of your chosen Travel Arrangements.
 2. Acting reasonably, if we or the Supplier/Principal is unable to properly accommodate the needs of the person(s) concerned, we will not confirm your booking or, if you did not give us full details at the time of booking, we may cancel it and impose applicable cancellation charges, when we become aware of these details.
16. **If there is a problem with your Travel Arrangements**
 1. **How to tell us if you have a problem during the performance of your Travel Arrangements.** If you have a complaint about your Travel Arrangements while they are taking place, you must tell the Supplier/Principal straight away. You must also contact us using the emergency contact telephone number which is included in your booking confirmation documents. That number will put you in contact with one of our employees who will take all reasonable steps to help you. It is only if you do this that we have the opportunity to put matters right whilst you're Travel Arrangements are taking place.
 2. **If you are still unhappy after you return home.** If you have a complaint or claim that you wish to pursue, please write to us within 28 days of your return to the United Kingdom. Where you have booked a single Travel Arrangement we will contact the Supplier/Principal on your behalf. Since we act as an agent on behalf of the Supplier/Provider, we are not responsible to you for any refunds or compensation payments and nor can these be made without the Supplier/Principal's authorisation. Where you have booked a Package Holiday your complaint or claim will be investigated and a full reply sent to you as soon as possible; as our investigations often involve obtaining information from overseas, it may take a few weeks.
17. **How we may use your personal information**
 1. **How we may use your personal information.** We will only use your personal information as set out in our [Privacy Policy](#).
 2. In the event of our insolvency we, or any appointed insolvency practitioner, may disclose your personal information to the CAA so that they can assess the

status of your booking and advise you on the appropriate course of action under any scheme of financial protection. The CAA's General Privacy Notice is at <https://www.caa.co.uk/Our-work/About-us/General-privacy-notice/>.

18. Events Beyond Our Control

1. In these terms, "Events Beyond Our Control" means a situation which is beyond our or the Supplier/Principal's control, the consequences of which could not have been avoided even if all reasonable measures had been taken. Such situations are likely to include, whether actual or threatened, war, riot, civil strife, terrorist activity, industrial dispute, natural or nuclear disaster, adverse weather conditions, flood, epidemics and pandemics, fire, airport, port or airspace closures, restrictions or congestion, flight or entry restrictions imposed by any regulatory authority or other third party, an FCDO advisory against travel to a particular destination and any other government restrictions on travel. Except where otherwise stated in these terms, we have no liability including for compensation, costs and expenses in such situations.
2. **Brexit Implications.** please note that certain Travel Arrangements may be affected as a result of the United Kingdom's decision to leave the European Union. This could include an unavailability of certain flight routes, access to certain ports and airports and changes to the visa requirements of British citizens travelling to, within or through the EU. Please rest assured that this is something we will continue to monitor and will advise our customers as soon as possible if we become aware of any confirmed bookings that will be affected. However, since this is something which is completely unprecedented and outside our control, whilst we will endeavour to work with the Supplier/Principal to provide suitable alternative arrangements or refunds where possible, we have no further liability to you for compensation.
3. **Pandemics.** You acknowledge that Supplier/Principals (where you have booked a single Travel Arrangement) and our suppliers (where you have booked a Package Holiday) will need to comply with national and/or local guidance and requirements relating to any pandemics that may occur, leading to the implementation of certain measures as a result. As an example, this may include specific requirements regarding personal protective equipment, such as use of face-masks by staff and guests, social distancing, maximum number restrictions on the use of certain facilities, designated alternative entrance and exit routes, mandatory hand sanitisation, limited entertainment options and limited food/drink availability. Should this situation arise we do not expect implemented measures to have a significant impact on the enjoyment of your travel arrangements and all measures will be taken with the purpose of securing your safety and those around you.

19. Your Flights.

1. **Direct Flights.** Please note that a flight described in your flight ticket as "direct" will not necessarily be non-stop. All departure/arrival times on your flight ticket are provided by the airlines concerned and are estimates only. They may change due to air traffic control restrictions, weather conditions, operational/maintenance requirements and the requirement for passengers to check in on time.
2. **Ticket Utilisation.** Please note that where a sector of a flight itinerary is not utilised without contacting the carrier directly any remaining sectors may be subject to cancellation without further notification. Where this situation arises, we are unable to accept responsibility for any costs incurred.
3. **No liability for delays to flights or other transport.** Air, rail, road and other departure times are supplied by the carriers. They are subject to, inter alia, air traffic control restrictions, weather conditions, the need for maintenance and the ability of passengers to check in on time. We do not have any liability to you for any delays that may arise (including any at your international departure airport). We will provide you with information and advice to the extent we are in a position to do so. Where applicable, the airline is responsible for providing any assistance as is legally required by EC 261/2004 (denied boarding and flight disruption) (see clause 19.6 below). Otherwise, any arrangements in the event of a delay will be at the sole discretion of the airline or other carrier involved.
4. **Community list.** In accordance with EU Directive (EC) No 2111/2005, we are required to bring to your attention the existence of a 'Community list' that contains details of air carriers that are subject to an operating ban within the EU Community. The Community list is available for inspection at http://ec.europa.eu/transport/modes/air/safety/air-ban_en.
5. **Change of carrier.** We are also required to advise you of the carrier(s) (or, if the carrier(s) is not known, the likely carrier(s)) that will operate your flight(s) at the time of booking. Where we are only able to inform you of the likely carrier(s) at the time of booking, we shall inform you of the identity of the actual carrier(s) as soon as we become aware of this. Any change to the operating carrier(s) after your booking has been confirmed will be notified to you as soon as possible. We are not always in a position at the time of booking to confirm flight timings. The flight timings shown on our website and detailed on your confirmation invoice are for guidance only and are subject to alteration and confirmation. The latest timings will be shown on your tickets that will be despatched to you approximately two weeks before departure. You must accordingly check your tickets very carefully immediately on receipt to ensure you have the correct flight times. It is possible that flight times may be changed even after tickets have been despatched – we, or the airline, will contact you as soon as possible if this occurs. Any change in the identity of the carrier, flight timings, and / or aircraft type (if given) will not entitle you to cancel or change to other Travel Arrangements without paying normal charges except where specified in these terms. If you have booked a Package Holiday and the carrier with whom you have a confirmed reservation becomes subject to an operating ban as above and we / the carrier are unable to offer you a suitable alternative, the provisions of clause 28 will apply.
6. **If your flight is cancelled or delayed.** If your flight is cancelled or delayed, your flight ticket is downgraded or boarding is denied by your airline, depending on the circumstances, the airline may be required to pay you compensation, refund the cost of your flight and/or provide you with accommodation and/or refreshments under EC Regulation No 261/2004 (denied boarding and flight disruption). Where applicable, you must pursue the airline for the compensation or other payment due to you. All sums you receive or are entitled to receive from the airline concerned by virtue of these Regulations represent the full amount of your entitlement to compensation or any other payment arising from such cancellation, delay, downgrading or denied boarding. This includes any disappointment, distress, inconvenience or effect on any other arrangements. The fact a delay may entitle you to cancel your flight does not automatically entitle you to cancel any other arrangements even where those arrangements have been made in conjunction with your flight. We have no liability to make any payment to you in relation to EC261 or in respect of any flight cancellation or delay, downgrading of any flight ticket or denial of any boarding as the full amount of your entitlement to any compensation or other payment (as dealt with above) is covered by the airline's obligations under EC261. If, for any reason, we make any payment to you or a third party which the airline is responsible for in accordance with EC261 or otherwise, you must, when requested, make a complete assignment to us of the rights you have against the airline in relation to the claim that gives rise to that payment. If your airline does not comply with these rules you may use the CAA Passenger Advice and Complaints Service. See <https://www.caa.co.uk/Passengers/Resolving-travel-problems/> for further details.
7. **Advance Passenger Information.** A number of Governments are introducing new requirements for air carriers to provide personal information about all travellers on their aircraft to the Authorities before the aircraft leaves the UK. The data will be collected either at the airport when you check in or in some circumstances when, or after you make your booking. Accordingly, you are advised to allow extra time to check in for your flight. It is your responsibility to provide these details to the aircrafts and ensure that it is accurate. Where we collect this data, we will treat it in accordance with our [Privacy Policy](#).
8. **Cancellation Protection.** Cancel your flight up to 24 hours before your first outbound departure flight, and obtain a partial or full refund (80% - 100% of the flight cost). This protection must be purchased at the time of booking and can not be added on after. Some airlines may provide refunds in the form of a credit voucher. T&C's apply, full details can be found [here](#)
9. **Cancellation Guarantee.** If your travel plans change, our Cancellation Guarantee allows you to cancel your flight, regardless of the reason. You can cancel up to 24 hours before your first outbound departure flight and receive a voucher worth up to 90% of the flight cost. T&C's apply, full details can be found [here](#)
10. **Flexi Cancel.** Flexi Cancel gives you the opportunity to secure your flight and its price now and allows you to cancel within a specified time window (the

"Cancellation Window"). This usually covers periods from 24, 48, 72 hours progressing up to 7 days after booking dependent on the service you have chosen but this can vary. This protection must be purchased at the time of booking for the pre-determined fee displayed and cannot be added on after. T&C's apply, full details can be found [here](#)

11. **Flexible Ticket.** TravelUp offers a Flexible Ticket add-on for flights you book through us. This lets you change your flight date and time, but with limitations. Changes must be made at least 24 hours before your original flight and only to flights with the same airline, in the same order, and within one year of booking. You cannot upgrade, change origin/destination, or modify names. The Flexible Ticket cannot be refunded, and by using it you accept the fare rules of the new ticket. Contact TravelUp's customer service to change your flight. Price differences for the new flight are your responsibility, and TravelUp is not liable for any impact on other bookings you may have. Full details can be found [here](#)

20. Accommodation

1. **Information.** We provide as much information as possible to help you choose the right accommodation taking into account a number of factors. Individual descriptions give you basic facts, figures, and photographs of several aspects of the accommodation. It is only fair to point out that not every room in each property is identical or has the same views. Distances are usually measured from the nearest point of public access, so if you have a room in the grounds, it may be further away or nearer than stated in the text.
2. **Ratings and reviews.** Star ratings are used to symbolise the overall quality and level of standards of each accommodation type. The star ratings are based on criteria including the range of standard facilities, the quality of the furnishings, the quality and range of the food outlets, and the overall level of service. There is no uniform and consistent method of star ratings and as such they can vary significantly by country, and often within countries. Also, not all countries have rating systems. Therefore, the rating displayed is only an opinion and should only be used as a guide. If we are provided an official rating by the Supplier/Principal of the accommodation we will endeavour to include that within the accommodation description. We may also display reviews from third-party websites such as Trip Advisor™. We have no control over such third-party websites or their content and make no endorsement of it. You should therefore make your own judgment as to the suitability or otherwise of any accommodation for your own personal needs before booking.
3. **Cots and high chairs.** Cots are normally provided by the Supplier/Principal. There may be limited availability and may not always conform to British Safety Standards. In order to avoid disappointment, you may wish to take your own carry/travel cot, however, as far as we are aware if it exceeds your baggage allowance you will have to pay an excess baggage charge. The cost of cots, and extras like food, should be paid for directly to the Supplier/Principal. High chairs where stated on individual property descriptions, are normally only available in the restaurant.
4. **Early accommodation check-out.** If you check-out early from your pre-booked accommodation you are not guaranteed any form of refund for unused nights. The information given to you by hotel staff may be incorrect in respect of refunds. Some Supplier/Principals will charge extra for early or late check-outs.
5. **No show.** If you do not arrive for the first night of your reservation but plan to check-in for later nights in the reservation, you must reconfirm the reservation with us and/or the Supplier/Principal no later than the original date of check-in to prevent cancellation of the whole booking. If you do not confirm the booking changes with us and/or the Supplier/Principal, the whole booking may be cancelled, and refunds will only be due to you in line with the terms of your booking.
6. **Local additional charges.** Some Supplier/Principals charge a fee/tax per room for certain services. This fee is at the accommodation supplier's discretion and is liable to change without notice and will apply regardless of whether these services are used. Governments have on occasion issued additional taxes and may ask the Supplier/Principals to collect these directly. These charges, if applicable, will be payable by you to the Supplier/Principal directly at checkout. Please verify which extra fees are and/or are not included before making a booking. These charges are subject to change and we have no liability to you for these taxes or charges and they are not included in your booking.
7. **Images.** Images featured on our website are used for illustration purposes only. Your specific hotel (where hotel accommodation is included as part of your arrangements) may differ from the representation provided.
8. **Construction work.** We cannot be held responsible for continual destination development, but we will endeavour to advise you of any building work of which we are aware that we consider will affect the enjoyment of your Travel Arrangements.

21. Car hire

1. **Important information.** If you book car hire through us, there are a few requirements that you need to be aware of, including:
 1. Check your documentation.
 2. Before travelling always make sure your driving licence is valid and that you have all parts of it together. You may also need an International Driving Permit (IDP) to drive in your destination, so make sure you check this before you travel.
 3. In some countries you may need to produce a check code obtainable from DVLC on <https://www.gov.uk/government/news/hiring-a-vehicle>.
 4. Understanding the local legal requirements.
 5. Learn the local road signs.
 6. Depending on the country you're driving in, you'll legally have to carry certain items in your car. Check what these are before you travel and make sure you have in the car at all times when driving. This also applies to the local laws for, which side of the road to drive on, speed limits and drink driving limits. Make sure you're familiar with all the rules before you travel.
 7. Things can sometimes get confusing when driving a car abroad, so it's important to get up to speed with the local road signs and how they may differ from those at home before collect the car.
2. **Complimentary car hire offers.**
 1. These terms and conditions apply to our complimentary car-hire promotional voucher offer ("Voucher") which is issued to our premium customers purchasing tickets from our websites (www.travelup.co.uk) (www.travelup.com) to destinations in the Caribbean, Canada and the USA (or any other destinations as specified from time to time by us) who are selected by us at our discretion to receive a Voucher. The Voucher will entitle the customer to reclaim from us a cash refund towards the cost of car-hire paid for by the customer up to a maximum entitlement equivalent to three (3) days hire. This applies only to vehicles provided to you by our nominated suppliers named on the Voucher.
 2. To qualify you must keep the Voucher in your possession at the time of when travelling and must produce the Voucher at the airline check-in desk if asked. You must hold a valid driving license and have it in your possession. Once you have qualified for this promotion the deposit for the chosen vehicle will have already been paid by us should you wish to exercise your option or not. If you wish to proceed by hiring a vehicle under this exclusive offer, we will also refund to you up to a maximum of three days hire charges towards the fee you have paid our car hire partner provided you submit your claim with the appropriate voucher within 14 days of the rental agreement terminating and is subject to the terms and conditions detailed below.
 3. If you are selected by us to receive a Voucher, you will be notified on the booking confirmation. You will then be entitled to receive the Voucher from us.
 4. The Voucher can only be used to reclaim the refund as a contribution towards your car-hire fees paid for by you and has no separate cash value and cannot be transferred.
 5. Only the hire of the approved vehicles (or similar) shall be eligible for a refund.
 6. Notwithstanding any offer of a Voucher that we may make, we will still be acting as an agent on behalf of the relevant Supplier/Principal and so we do not accept any liability for the vehicle hired, which will be the subject to and governed by the terms and conditions of the Supplier/Principal in

question.

7. To redeem the Voucher, you must present it to us together with evidence of full payment for the vehicle hire within 14 days of the return of the vehicle.

3. Baggage Tracking Services Provided by Blue Ribbon Bags - UK

1. **Role of TravelUp:** TravelUp acts solely as an agent facilitating the purchase of baggage tracking services provided by Blue Ribbon Bags, LLC ("Supplier"). In this capacity, TravelUp is not the Supplier of the baggage tracking service and bears no responsibility for the delivery, performance, or outcome of the services rendered by the Supplier.
2. **Acceptance of Terms:** By purchasing the baggage tracking service and paying the associated Service Agreement Fee, you acknowledge and accept the terms and conditions outlined in both the Supplier's Service Agreement and TravelUp's Standard Terms and Conditions.
3. **Supplier's Service Agreement:** The baggage tracking service is governed by the Supplier's Service Agreement, which details the scope, limitations, and procedures related to the service. You are advised to review this agreement thoroughly to understand your rights and obligations. The Supplier's Service Agreement can be accessed at <https://www.blueribbonbags.com/ServiceAgreement?bu=TTP&lang=en-US>.
4. **Reporting Requirements:** In the event of mishandled baggage, it is your responsibility to report the issue to the Supplier, Blue Ribbon Bags, within 24 hours of the flight's landing. Failure to comply with this reporting requirement may result in the forfeiture of any benefits or compensation under the Supplier's Service Agreement.
5. **Indemnification of TravelUp:** You agree to indemnify and hold harmless TravelUp from any claims, damages, or liabilities arising out of or related to the services provided by the Supplier, Blue Ribbon Bags, including but not limited to issues stemming from mishandled baggage, service delivery, or compensation disputes.
6. **Governing Law:** This clause and any disputes arising hereunder shall be governed by and construed in accordance with the laws of England and Wales.

22. Other important terms

1. **We may transfer this agreement to someone else.** We may transfer our rights and obligations under these terms to another organisation. We will always tell you in writing if this happens and we will ensure that the transfer will not affect your rights under the contract.
2. **You need our consent to transfer your rights to someone else (except where you can transfer your place on a Package Holiday in accordance with clause 26).** You may only transfer your rights or your obligations under these terms to another person if we agree to this in writing. However, where you have booked a Package Holiday, you may transfer your place on the Package Holiday to another person subject to compliance with the conditions stipulated at clause 26.
3. **Nobody else has any rights under this contract (except someone you transfer your holiday place to).** This contract is between you and all persons named on the booking, and us. No other person shall have any rights to enforce any of its terms, except as explained in clause 22.2. Neither of us will need to get the agreement of any other person in booking to end the contract or make any changes to these terms.
4. **If a court finds part of this contract illegal, the rest will continue in force.** Each of the paragraphs of these terms operates separately. If any court or relevant authority decides that any of them are unlawful, the remaining paragraphs will remain in full force and effect.
5. **Even if we delay in enforcing this contract, we can still enforce it later.** If we do not insist immediately that you do anything you are required to do under these terms, or if we delay in taking steps against you in respect of your breaking this contract, that will not mean that you do not have to do those things and it will not prevent us taking steps against you at a later date. For example, if you miss a payment and we do not chase you, we can still require you to make the payment at a later date.
6. **Which laws apply to this contract and where you may bring legal proceedings.** These terms are governed by English law and you can bring legal proceedings in respect of your booking in the English courts. If you live in Scotland, you can bring legal proceedings in respect of your booking in either the Scottish or the English courts. If you live in Northern Ireland, you can bring legal proceedings in respect of your booking in either the Northern Irish or the English courts.

SECTION B - PACKAGE HOLIDAY BOOKINGS

WHERE YOU HAVE BOOKED A PACKAGE HOLIDAY ORGANISED BY TRAVEL UP, PLEASE READ THESE ADDITIONAL TERMS IN SECTION B IN CONJUNCTION WITH SECTION A.

1. Definition of a Package Holiday.

1. Where your booking is for a Package Holiday as defined in this clause, we are the "Package Organiser" and you will receive the rights and benefits under the Package Travel and Linked Travel Arrangements Regulations 2018 ("PTRs"), as outlined in Section B of these terms and in the Standard Information on Traveller's Rights, which can be found here: [LINK TO STANDARD INFORMATION FORM WEBPAGE].
2. **What is Package Holiday.** A "Package Holiday" exists if you book a combination of at least two different types of the following individual travel services, for the purpose of the same trip or holiday, which is organised by us:

1. Carriage of passengers; or
2. accommodation; or
3. rental of cars, motor vehicles or motorcycles (in certain circumstances); and
4. any other tourist service not intrinsically part of one of the above travel services,

provided that those travel services are purchased together from a single visit to our website and selected by you before you agree to pay; or are advertised, sold or charged at an inclusive or total price; or advertised or sold under the term "package" or a similar term.

You will know when you have booked a Package Holiday as we will be named as the package organiser on the confirmation invoice and where your Package Holiday includes a flight, we will be shown as the ATOL Holder on the ATOL Certificate.

3. **What isn't a Package Holiday.** Please note that where you have made a booking which consists of not more than one type of travel service as listed at (a) – (c) in clause 23.2, combined with one or more tourist services as listed at 23.2(d) above, this will not create a Package Holiday where the tourist services:
 1. do not account for 25% of the value of the combination and are not advertised as, and do not otherwise represent, an essential feature of the package; or
 2. are selected and purchased after the performance of the carriage of passengers, accommodation or car rental has started.

These bookings will be treated as "Single Component" bookings and will not be afforded the benefit of the rights under the PTRs.

2. **Your Contract.** Where you have booked a Package Holiday your contract is with Travel Up and it will come into force when we issue your booking confirmation. Your booking is governed by Section A and Section B of these terms, our [Privacy Policy](#) and any other information which we brought to your attention before we confirmed your booking.
3. **Pricing.** We reserve the right to increase the price of your confirmed Package Holiday solely to allow for increases which are a direct consequence of changes in:
 1. the price of the carriage of passengers resulting from the cost of fuel or other power sources;

2. the level of taxes or fees applicable to the holiday imposed by third parties not directly involved in the performance of the holiday, including tourist taxes, landing taxes or embarkation or disembarkation fees at ports and airports; and
3. the exchange rate relevant to the Package Holiday.

You will be charged for the amount of any increase in accordance with this clause 25. However, if this means that you have to pay an increase of more than 8% of the total price of the confirmed Package Holiday (excluding any amendment charges and/or additional services), you will have the option of accepting the price increase and paying the requested amount, accepting a change to another holiday if we are able to offer one (if this is of a lower quality you will be refunded the difference in price), or cancelling and receiving a full refund of all monies. Should you decide to cancel for this reason, you must exercise your right to do so within 7 days from the issue date on the invoice.

Should the price of your Package Holiday go down due to the changes mentioned above then any refund due will be paid to you. However, please note that Travel Arrangements are not always purchased in local currency and some apparent changes may have no impact on the price of your Package Holiday due to contractual and other protection we have in place.

There will be no change made to the price of your confirmed Package Holiday within 20 days of your departure nor will refunds be paid during this period.

4. Your right to transfer your Package Holiday

1. You have the right to transfer your place on your Package Holiday to another person (introduced by you), subject to compliance with the following conditions:
 1. the person to whom you are transferring your place satisfies all conditions applicable to the Package Holiday;
 2. requests for a transfer must be made to us in writing at least 7 days before the start of your Package Holiday and must be accompanied by the name and other applicable details of the person who will replace you;
 3. in the event that the balance of the Package Holiday cost is due but has not been paid when the transfer request is made, this must be paid before the transfer can be made. Any additional payment amount that our suppliers require to effect the change (if the transfer can be made) will be payable, as well as an administration fee of £75 per person transferring (unless you have purchased a service pack, in which case the amendment fee payable will be as per the terms of your chosen service pack). Please note, in some cases suppliers such as airlines treat name changes as a cancellation, levying cancellation charges and requiring payment for a new ticket. These charges must be paid by you before any change can be made;
 4. the transferee agrees to these terms.
2. You and the transferee remain jointly and severally liable for payment of all sums. If you are unable to find a replacement, you can choose to cancel your booking and the cancellation charges set out in clause 27 will apply. Otherwise, no refunds will be given for customers not travelling or for unused services.

5. If you wish to cancel your Package Holiday

1. **If you wish cancel your Package Holiday after it has been confirmed**, you must pay the cancellation charges at clause 27.2. In calculating the cancellation charges at clause 27.2, we have taken account of expected cost savings and the generation of income from alternative deployment of the Travel Arrangements, to the extent this is likely to be achievable for your Package Holiday. For some bookings, including those for which full payment is required at the time of booking, 100% cancellation charges apply from confirmation of your booking. Where the cancellation charge is shown as a percentage, this is calculated on the basis of the total cost payable by the person(s) cancelling, excluding amendment charges which are not refundable.
2. **Cancellation charges.**
Days before departure when notice of cancellation is received by us
Amount of cancellation charges
 More than 14 days
 Loss of all deposits paid, and any other cancellation fees that may be levied by the supplier(s) of the Travel Arrangements that make up your Package Holiday.
 In addition, you will also be required to pay a £75 cancellation fee to cover our administration costs.
 14 days or less
 100% of the cost of your Package Holiday.
3. **Your right to cancel your Package due to unavoidable and extraordinary circumstances.** Cancellation charges will not be applicable in the event that unavoidable and extraordinary circumstances occur in the place of destination of your Package Holiday or its immediate vicinity which significantly affect the performance of your Package Holiday or the carriage of passengers to that destination, and as a result you notify us in writing prior to departure that you wish to cancel your Package Holiday. In this situation, we will refund all monies you have paid to us (once we have received that refund from the suppliers of the Travel Arrangements making up your Package Holiday; note, we cannot refund any amount to you if we haven't received the same from the applicable supplier(s)) but will have no further or other liability to you including in respect of compensation or any costs or expenses you incur or have incurred. Please note that your right to cancel in these circumstances will only apply where the Foreign, Commonwealth and Development Office (FCDO) advises against travel to your destination or its immediate vicinity and where you are due to travel imminently. For the purposes of this clause 27, "unavoidable and extraordinary circumstances" means warfare, acts of terrorism, significant risks to human health such as the outbreak of serious disease at the travel destination or natural disasters such as floods, earthquakes or weather conditions which make it impossible to travel safely to the travel destination.

6. Our rights to make changes or cancel your Package Holiday

1. Very occasionally, we may have to make a change to your confirmed Package Holiday booking or cancel it altogether – and we reserve the right to do so.
2. **Minor changes to your Package Holiday.** Most changes will be minor and we have the right to make these. Where we become aware of a minor change to your Package Holiday before departure, we will try to notify you in writing should there be time to do so. We do not have to pay you any compensation where the change to your Package Holiday is minor. Minor changes are likely to include (but are not limited to):
 1. changes to any destination, place of stay or port or place of call in your itinerary which is not a major, confirmed destination, place of stay or port or place of call;
 2. a change of outward departure time or overall length of your holiday by less than 12 hours;
 3. change of accommodation to another of the same or higher standard;
 4. changes to aircraft type or carrier/airline.
3. **Significant changes to your Package Holiday.** Occasionally, we may have to make a significant change to or cancel your confirmed Package Holiday. Examples of "significant changes" include the following, when made before departure:
 1. a change of accommodation area for the whole or a significant part of your time away;
 2. a change of accommodation to that of a lower standard or classification for the whole or a significant part of your time away;
 3. a change of outward departure time or overall length of your Package Holiday by more than 12 hours;
 4. a significant change to your itinerary, missing out one or more destinations entirely;
 5. A change of UK departure airport except between:
 1. The London airports: Gatwick, Heathrow, Luton, Stansted, London City and Southend
 2. The South Coast airports: Southampton, Bournemouth and Exeter
 3. The South Western airports: Cardiff and Bristol

4. The Midlands airports: Birmingham, East Midlands and Doncaster Sheffield
5. The Northern airports: Liverpool, Manchester and Leeds Bradford
6. The North Eastern airports: Newcastle and Teesside
7. The Scottish airports: Edinburgh, Glasgow, Prestwick and Aberdeen.

4. **If we make a significant change.** If we have to make a significant change to your confirmed Package Holiday, we will provide you with the following information in writing as soon as possible:

1. the proposed changes to your Package Holiday and any impact they have on the price;
2. in the event that you do not wish to accept the changes, details of any substitute package we are able to offer (if any), including the impact on price. Where the substitute package is a lower standard or cost, you will be entitled to a refund of the difference in price;
3. your entitlement to cancel your booking and receive a full refund if you do not want to accept the changed package or any substitute package offered; and
4. the period within which you must inform us of your decision and what will happen if you don't do so.

If you choose to cancel your booking, we will refund all payments you have made to us. If we don't hear from you with your decision within the specified period (having provided you with the above-mentioned information for a second time), we will cancel your booking and refund all payments made to us.

5. **If we cancel your Package Holiday.** We have the right to terminate your confirmed Package Holiday in the following circumstances:

1. we are prevented from performing your contracted Travel Arrangements as a result of Events Beyond Our Control (as defined in clause 18) and we notify you of this as soon as reasonably possible; or
2. we have to cancel because the number of persons who have booked the Package Holiday on which you are travelling is smaller than the minimum number applicable to the package as stated in the contract and you are notified of the cancellation within the timescales stipulated at clause 28.7; or
3. we cancel due to your failure to pay the balance of the cost of your Package Holiday on time.

6. **Refunds.** We will provide you with a refund where you are entitled to receive one (once we have received that refund from the suppliers of the Travel Arrangements making up your Package Holiday; note, we cannot refund any amount to you if we haven't received the same from the applicable supplier(s)) but will have no further or other liability to you including in respect of compensation or any costs or expenses you incur or have incurred. You can also accept an alternative package of a comparable standard if available and we offer one (and we will refund any price difference if the alternative is of a lower value).

7. **Cancellation due to failure to reach minimum numbers.** Where we cancel your confirmed Package Holiday due to a failure to reach the minimum numbers required for that particular Package Holiday, we will notify you no later than:

1. in the case of trips lasting more than 6 days, 20 days before the start of the package;
2. in the case of trips lasting between 2 and 6 days, 7 days before the start of the package;
3. in the case of trips lasting less than 2 days, 48 hours before the start of the package.

8. **Insurance** If we cancel or make a significant change and you accept a refund, we will provide a full refund of your travel insurance premiums if you paid them to us and can show that you are unable to transfer or reuse your policy.

9. **Compensation.** In addition to a full refund of all monies paid by you, we will pay you compensation as detailed in the table below, in the following circumstances:

1. If, where we make a significant change, you do not accept the changed Package Holiday and cancel your booking; or
2. If we cancel your Package Holiday booking and no substitute packages are available, or you choose not to accept the substitute package offered to you.

The compensation that we offer does not exclude you from claiming more if you are entitled to do so.

Period before departure in which we notify you

Amount you will receive from us*

More than 56 days

Nil

56 - 43 days

£10

42 - 29 days

£20

28 - 8 days

£30

Less than 8 days

£40

*We will not pay you compensation in the following circumstances:

1. where the change to your Package Holiday is minor;
2. where we make a significant change or cancel your Package Holiday more than 60 days before the departure/start date;
3. where we make a significant change and you accept the changed Package Holiday or you accept an offer of a substitute package;
4. where we have to cancel your Package Holiday as a result of your failure to make full payment on time;
5. where the change or cancellation arises out of changes to the confirmed booking requested by you;
6. where we are forced to cancel or change your Package Holiday due to Events Beyond Our Control (as defined in clause 18).

10. **Post-departure changes.** If we become unable to provide a significant proportion of the Package Holiday that you have booked after you have departed, we will, if possible, make alternative arrangements for you at no extra charge and where those alternative arrangements are of a lower standard, provide you with an appropriate price reduction.

7. Our responsibilities to you.

1. **We are responsible to you for the proper provision of the Package Holiday.** Where you have booked a Package Holiday, we will accept responsibility for your holiday as an "organiser" under the Package Travel and Linked Travel Arrangements Regulations 2018 as set out in this clause 29. This means that we are responsible for the proper provision of the Travel Arrangements included in your Package Holiday, as set out in the booking confirmation. Subject to these terms, if we or any of our supplier negligently provide those Travel Arrangements and we don't remedy or resolve your complaint within a reasonable period of time, and this affects the enjoyment of your Package Holiday, you may be entitled to an appropriate price reduction or compensation or both.

You must inform us without undue delay of any failure to perform or improper performance of the Travel Arrangements included in your Package Holiday. The level of such compensation will be calculated taking into consideration all relevant factors such as but not limited to: following the complaints procedure as described in these terms and the extent to which the Supplier/Principal's negligence affected the overall enjoyment of your Package Holiday. Please note that it is your responsibility to show that we or our suppliers have been negligent if you wish to make a claim against us.

2. **What we will not be responsible for.** We will not be responsible for any injury, illness, death, loss (including loss of possessions or enjoyment), damage, expense, cost or other sum or claim of any nature whatsoever which results from:

1. the act(s) and/or omission(s) of the person(s) affected; or
2. the act(s) and/or omission(s) of a third party not connected with the provision of the Travel Arrangements and which were unforeseeable or unavoidable;
3. Events Beyond Our Control (as defined in clause 18).
4. We cannot accept responsibility for any services that do not form part of the Package Holiday, as specified in your booking confirmation. This includes, for example, any additional services or facilities that the supplier agrees to provide for you where the services or facilities are not advertised on our website as forming part of your Package Holiday and we have not agreed to arrange them as part of our contract, and any excursion/activities you purchase while away.
5. We cannot accept any liability for any damage, loss, expense or other sum(s) of any description which on the basis of the information given to us by you concerning your booking prior to our accepting it, we could not reasonably have foreseen you would suffer or incur if we breached our contract with you, or which did not result from any breach of contract or other fault by ourselves or our employees or, where we are responsible for them, our suppliers. Additionally, we cannot accept liability for any expenses or losses that relate to or arise from any business (including without limitation, self-employed loss of earnings), or any indirect or consequential loss of any kind.
3. **We do not exclude or limit in any way our liability to you where it would be unlawful to do so.** This includes liability for death or personal injury caused by our negligence or the negligence of our employees, agents or subcontractors; or for fraud or fraudulent misrepresentation.
4. **Limits to our liability.** We limit the amount of compensation we may have to pay you if we are found liable to you, as follows:
 1. **loss of and/or damage to any luggage or personal possessions and money:** The maximum amount we will have to pay you in respect of these claims is an amount equivalent to the excess on your insurance policy which applies to this type of loss per person in total because you are required to have adequate insurance in place to cover any losses of this kind.
 2. **Claims not falling under (a) above and which don't involve injury, illness or death:** The maximum amount we will have to pay you in respect of these claims is up to three times the price paid by or on behalf of the person(s) affected in total. This maximum amount will only be payable where everything has gone wrong and you or your party has not received any benefit at all from your booking.
 3. **Claims in respect of international travel by air, sea and rail:**
 1. Where any claim or part of a claim (including those involving death or personal injury) concerns or is based on any travel arrangements (including the process of getting on and / or off the transport concerned) provided by any air, rail or sea carrier to which any international convention or EU regulation applies, our liability (including the maximum amount of compensation we will have to pay you, the types of claim and the circumstances in which compensation will be payable) will be limited as if we were the carrier in question as referred to below. The most we will have to pay you for that claim or that part of a claim if we are found liable to you on any basis is the most the carrier concerned would have to pay under the international convention or EU regulation that applies to the travel arrangements in question (for example, the Warsaw Convention as amended or unamended and the Montreal Convention for international travel by air and/or, for airlines with an operating licence granted by an EU country, the EC Regulation on Air Carrier Liability No 889/2002 for national and international travel by air, EC Regulation 392/2009 on the liability of carriers of passengers in the event of accidents and/or the Athens Convention (as amended by the 2002 Protocol) for international carriage by sea and the Convention of 1980 concerning International Travel by Rail (COTIF) as amended for travel by rail). Where a carrier would not be obliged to make any payment to you under the applicable international convention or EU regulation (including where any claim is not notified and issued in accordance with the time limits stipulated in the applicable convention or regulation), we similarly are not obliged to make a payment to you for that claim or part of the claim. Please also note that strict time limits apply for notifying loss, damage or delay of luggage to the airline. Any proceedings in respect of any claim (including one for personal injury or death) must be brought within 2 years of the date stipulated in the applicable convention or regulation. You are not entitled to make any claim against us which concerns or is based on any travel arrangements provided by any air, rail or sea carrier if such a claim is not expressly permitted to be brought against the carrier by the international convention or regulation that applies to the travel arrangements in question. When making any payment, we will deduct any payment that you have received or are entitled to receive from the carrier for the complaint or claim in question. Copies of the applicable international conventions and regulations are available from us on request.
 2. When making any payment, we are entitled to deduct any money which you have received or are entitled to receive from the transport provider or hotelier for the complaint or claim in question.
5. **Where you are unable to return home.** Where it is impossible for you to return to your departure point as per the agreed return date of your Package Holiday due to "unavoidable and extraordinary circumstances", we shall provide you with any necessary accommodation (where possible, of a comparable standard) for a period not exceeding three nights per person. Please note that the 3-night cap does not apply to persons with reduced mobility, pregnant women or unaccompanied minors, nor to persons needing specific medical assistance, provided we have been notified of these particular needs at least 48 hours before the start of your Package Holiday. For the purposes of this clause 29.5, "unavoidable and extraordinary circumstances" mean warfare, acts of terrorism, significant risks to human health such as the outbreak of serious disease at the travel destination or natural disasters such as floods, earthquakes or weather conditions which make it impossible to travel safely back to your departure point.
6. **Where you require assistance whilst on holiday.** If, whilst you are on holiday, you find yourself in difficulty for any reason, we will offer you such prompt assistance as is appropriate in the circumstances. In particular, we will provide you with appropriate information on health services, local authorities and consular assistance, and assistance with distance communications and finding alternative travel arrangements. Where you require assistance, which is not owing to any failure by us, our employees or our suppliers, we will not be liable for the costs of any alternative travel arrangements or other such assistance you require. Any supplier, airline or other transport supplier may however pay for or provide refreshments and/or appropriate accommodation and you should make a claim directly to them. Subject to these terms, we will not be liable for any costs, fees or charges you incur in the above circumstances, if you fail to obtain our prior authorisation before making your own travel arrangements. Furthermore, we reserve the right to charge you a fee for our assistance if the difficulty is caused intentionally by you or a member of your party, or otherwise through your or your party's negligence.
7. **Limitation of liability.** If a pandemic is declared. We both acknowledge and accept our obligations to comply with any official guidance from governments or local authorities, both in the UK and whilst on overseas. Please note that we will have no liability for any refunds, compensation, costs, expenses or other losses of any kind incurred by you (including, where applicable, the cost of medical treatment), in the following circumstances:
 1. If you, or anyone in your booking party, test positive for the classified infection and have to quarantine for a period of time, or are notified or otherwise become aware that you have, or suspect you may have, come into close contact with someone who has tested positive for the classified infection (or where they otherwise suspect they may have suspected infection) and have to self-isolate for a period of time. If this happens within 14 days of your departure date, you must contact us as you may no longer be able to travel. We will offer you the following options where possible and subject to availability:
 1. Postponing your Package Holiday to a later date. We will notify you of any impact on the price the postponement may have (please note that you may have to pay full cancellation charges on some elements of your Package Holiday, such as the flight, as well any increase in cost imposed by our suppliers);
 2. If not everyone on the booking is affected, you will have the right to transfer your place on the Package Holiday to another person

nominated by you, subject always to compliance with the requirements of clause 26;

3. Cancelling your booking, in which case we will impose our standard cancellation charges as set out in clause 27. at the date of cancellation by you. You may be able to claim these costs back from your travel insurance.

If this happens whilst you are on your holiday, please notify us without delay and we will provide such reasonable assistance as we can in the circumstances. However, we will not be responsible for covering the cost of any curtailment of your Package Holiday, missed transport arrangements, additional accommodation required, or other associated costs incurred by you. You must ensure you have travel insurance which covers these costs for you.

2. You fail any tests, checks or other measures imposed by a supplier, airline, port or airport, border control authority or other government body or local authority or fail to submit for testing or assessment when requested to do so, and as such you are denied entry to board the flight, entry to the destination, access to the Travel Arrangements or you are otherwise unable to proceed with the Package Holiday, or that part of the Package Holiday.

8. Insolvency protection for your payments

1. **Membership organisations.** We hold an Air Travel Organiser's Licence (ATOL) issued by the Civil Aviation Authority (ATOL number 7227).
2. **Our legal obligation to provide insolvency protection for your payments.** The Package Travel and Linked Travel Arrangements Regulations 2018 require us to provide security for the monies that you pay for the Package Holiday booked with us and, where flights or other carriage is included, for your repatriation in the event of our insolvency.
3. **Insolvency protection for flight packages** For flight-inclusive Package Holidays, we provide this protection by way of our ATOL (number 7227) issued by the Civil Aviation Authority, Gatwick Airport South, West Sussex, RH6 0YR, UK, telephone 0333 103 6350, email: claims@caa.co.uk. When you buy an ATOL protected flight inclusive package from us, you will receive an ATOL Certificate. This lists what is financially protected, where you can get information on what this means for you and who to contact if things go wrong. Please see clause 8.3 for further information on the ATOL scheme.

9. Price match guarantee

1. **We offer a Price Match Guarantee for Package Holiday bookings.** We continually monitor and track millions of prices every day ensuring we offer you the best price possible. If you book with us and within 12 hours of your booking being confirmed find your holiday on sale, and available to book, at a lower price on a UK based travel website, we will refund the difference to you, subject to the terms of this clause 31.
2. **Qualifying and applying for the Price Match Guarantee.**
 1. The Price Match Guarantee applies to identical holidays only (i.e. party size, dates, duration, flight times, flight numbers, in flight extras, transfers, hotel, room type, number of rooms and board basis) immediately available and accurately priced. The price match guarantee does not apply to Flight Only, Hotel Only or any other booking that is not a Package Holiday.
 2. The Price Match Guarantee request can only be submitted to us once your booking has been confirmed by us and must be submitted within 12 hours of your confirmed booking.
 3. The person responsible for making the booking (lead name) must make the claim.
 4. The Package Holiday booking you are asking us to Price Match must be from a legitimate ABTA Member and/or ATOL holder's website, available to book online and must include any handling charges, booking fees, credit card fees and such like.
 5. The rate applicable to the Package Holiday you are asking us to Price Match must be available to the general public and cannot include in its price any money off coupons, corporate discounts, promotional vouchers or offers or bulk-buy discounts.
 6. We must be able to obtain the same price without being a member or part of a loyalty scheme.
 7. The Package Holiday booking you are asking to Price Match must be in pounds sterling.
 8. You must provide a screen shot, URL or other evidence of a lower price with a competitor that can be confirmed by our customer services team.
 9. The Price Match Guarantee is only available for bookings made online.
 10. If the price you have found abides by all of the requirements set out in this clause 31, simply email marketing@travelup.com from the lead passenger's email account. Remember to include your booking reference number and all the details above
3. **Why you must claim within 12 hours.** We obtain the best live prices at the time of your booking. Prices do change minute by minute and the costs may go up or down in the future, but when you book you are then guaranteed the price applicable at the time of booking (except in the case of a pricing error or lack of availability). Some suppliers (e.g. airlines and hotels) may reduce or increase their prices closer to departure or during sale periods but we will have already paid the original price on your behalf. Therefore we can only consider a claim made under the Price Match Guarantee for 12 hours after you place your booking, because prices can go up or down by the following day.
4. **Evidence** Please note we cannot accept responsibility where you have failed to send us the information requested in the format required or where a URL from the site you are asking us to price match is no longer active, as it prevents us from viewing the comparison holiday.
5. **Response.** We will review the details of your Price Match request and reply to you via email within 7 working days. Refunds, where due, will be re-credited to the original card used to make your online purchase within 14 days.
6. **Modification or withdrawal of the Price Match Guarantee.** We reserve the right to modify or discontinue the Price Match Guarantee or restrict its availability to any person at any time for any or no reason and without prior notice or liability to you.

10. Terms and Conditions – Travel Up Ltd Monthly Service Pack Prize Draw

1. **Win your flights for free – Service Pack Bookings**
 1. The Travel Up Ltd Monthly Service Pack Prize Draw (the "Competition") is operated by Travel Up Ltd ("the Promoter").
 2. By entering the Competition, participants agree to be bound by these Terms and Conditions.
2. **Eligibility**
 1. The Competition is open to United Kingdom residents that make a flight booking with Travel Up Ltd and add either a Silver or Gold Service Pack to their booking.
 2. Participants must be at least 18 years old and legally reside in the United Kingdom.
 3. Employees of Travel Up Ltd, their immediate family members, and anyone else professionally associated with the Competition are not eligible to enter.
3. **Entry Requirements**
 1. To enter the Competition, customers must purchase a flight and add either a Silver Service Pack (£19.99 per person) or a Gold Service Pack (£29.99 per person) to their booking.
 2. Each booking that includes a Silver or Gold Service Pack will be automatically entered into the prize draw for the corresponding month of booking.
 3. There is no additional fee to enter the Competition beyond the cost of the service pack.
 4. Only one entry per booking will be counted, regardless of the number of service packs purchased.
4. **Prize Details**
 1. The prize for each monthly draw is the full cost of the winner's flight booking, up to a maximum value of £2,000.
 2. The prize applies only to the original flight booking cost and does not cover additional expenses such as travel insurance, accommodation, or any amendments to the booking.

3. The prize is non-transferable, non-exchangeable, and no cash alternative will be offered.

5. Winner Selection and Notification

1. A winner will be selected at random from all eligible entries received within the relevant calendar month.
2. The draw will take place within seven (7) days following the end of each calendar month.
3. The winner will be notified via the contact details provided at the time of booking within five (5) working days of the draw.
4. If the winner does not respond within ten (10) working days of notification, Travel Up Ltd reserves the right to select an alternative winner.

6. Publicity

1. By entering the Competition, participants agree that their name and image may be used for promotional purposes by Travel Up Ltd, including but not limited to announcements on the website and social media platforms.
2. The winner may be required to participate in reasonable publicity activities as requested by the Promoter.

7. General Conditions

1. Travel Up Ltd reserves the right to amend, suspend, or cancel the Competition at any time without prior notice.
2. The Promoter accepts no responsibility for entries that are incomplete, lost, or delayed due to technical or other reasons.
3. The Promoter reserves the right to disqualify any participant who breaches these Terms and Conditions or engages in fraudulent or unfair conduct.

8. Data Protection

1. Personal data provided by participants will be processed in accordance with Travel Up Ltd's Privacy Policy and used solely for the purpose of administering the Competition.
2. By entering, participants consent to the processing of their data for the purposes of the Competition.

9. Governing Law

1. These Terms and Conditions shall be governed by and construed in accordance with the laws of England and Wales.
2. Any disputes arising in connection with the Competition shall be subject to the exclusive jurisdiction of the courts of England and Wales.

For any queries regarding the Competition, please contact Travel Up Ltd at marketing@travelup.com.